

# **ADDENDUM TO AGENCY AGREEMENT**

**BETWEEN**

**KC GAMING NETWORKS LTD**

**AND**

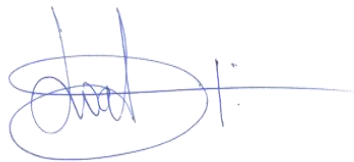
**NWOYE EKENE MOSES**

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9948110

**PREPARED BY**

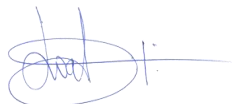


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**LEGAL & COMPLIANCE DEPARTMENT**

**KC GAMING NETWORKS LTD (BET9JA)**

**9, FUNSHO WILLIAMS AVENUE, OJUELEGBA, SURULERE, LAGOS**



This **ADDENDUM TO THE AGENCY AGREEMENT** is entered into and shall be effective as of 27<sup>th</sup> July, 2023 (the **“Effective Date”**),

BETWEEN

**KC Gaming Networks Ltd**, a company incorporated under the Laws of Nigeria with registration number 1035305, and having its registered/principal office at **Tomi’s House, 9 Funsho Williams Avenue, Ojuelegba Surulere** (hereinafter referred to as **"Bet9ja"** which expression shall, where the context so admits, include its successors, executors and permitted assigns) as **“First Party”**

AND

**NWOYE EKENE MOSES.**, a Nigerian resident (hereinafter referred to as **“Agent”** whose expression shall, where the context so admits, includes his/her successors, executors and permitted assigns) with

- Agent Code: **9948110**
- Address: **Igbo Imabana, Abi L.G.A, Cross River State**

as **“Second Party”**.

Bet9ja and the Agent may be individually referred to as the **"Party"** and collectively referred to as the **"Parties"**.

## **RECITALS**

**WHEREAS** Bet9ja is duly licensed by the National Lottery Regulatory Commission (NLRC) and various States Gaming Authorities in Nigeria to operate the business of Gaming.

**WHEREAS** Bet9ja has an ongoing agency agreement with the Agent.

**WHEREAS** the sudden increase in the cost of fuel has negatively affected the Agent and his/her capacity to sustain the operation of his/her Bet9ja retail outlets.

**WHEREAS** the Agent will purchase from an established company or a dealer authorized to sell and distribute alternative power supply equipment as specified in Equipment Schedule below (hereinafter referred to as the **“Equipment”**) upon the terms and conditions set forth in this Agreement.



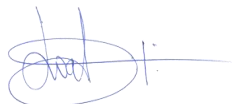
**WHEREAS** the Agent will purchase the said equipment from an established company or a dealer authorized to sell and distribute the equipment in order to access a more efficient and cost-effective source of energy..

**WHEREAS** Bet9ja will provide the Agent a percentage of the purchase price of the equipment and its installation in the agreed **location** for the sole purpose of enabling the Agent to continue to sustain his/her Bet9ja retail outlet(s) as a Bet9ja Agent.

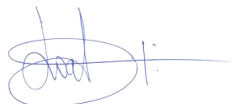
**NOW THEREFORE**, in consideration of the mutual covenants and promises hereinafter to set forth, the Parties agree as follows:

### **1. OBLIGATIONS OF THE AGENT**

- (i) To ensure that he/she identifies a suitable location in which the equipment will be installed in the betting shop or within the vicinity of the betting shop.
- (ii) To ensure that he/she provides .....<sup>20</sup>...% of the agreed price for the purchase of the equipment prior to requesting for the Company's counterpart fund.
- (iii) The agent further undertakes that 20% of his/her Agent's weekly commission and bonus or N25,000.00 from his/her weekly commission and bonus (whichever one is higher) shall be deducted by Bet9ja for the repayment of the company's contribution for the purchase of the equipment.
- (iv) To commence the repayment sum of the equipment through a weekly deduction from the agent's commission and bonus commencing two (2) Thursdays from the day of installation.
- (v) To ensure that the equipment is secured from theft, damage and losses and in the event that the agent is negligent in securing the equipment, he/she shall be liable for the full cost of replacing the equipment.
- (vi) To ensure regular maintenance of the equipment (where applicable) in lieu of the prescribed maintenance standards.
- (vii) Upon confirmation of readiness to install the Solar panel:



- a. To provide the name and phone number of the installer;
  - b. To ensure that the Agent's account is enabled with no debt - i.e SRD must be on minus or Zero;
  - c. To complete installation within one week of receipt of funds;
  - d. To send installation confirmation report together with pictures showing shop exterior view and installed solar inverter components to [solar@bet9ja.com](mailto:solar@bet9ja.com) and copy his/her SuperAgent for verification purposes.
- (viii) To provide detailed incident logs on the equipment for the use of Bet9ja's appointed personnel or technician.
- (ix) To ensure that he/she does not transfer or sell the equipment without the consent of Bet9ja.
- (x) To undertake to use the equipment for the purpose of powering his/her Bet9ja shop only.
- (xi) During the continuance of this Agreement, the Agent shall not sell, assign, pledge, mortgage, underlet, lend, or part with the possession of the said equipment or otherwise deal with the said equipment and shall not take the same out of the shop without the previous consent in writing of Bet9ja. Where the Agent contravenes the provision of this Clause, it shall be a ground for the termination of the Principal Agency Agreement with the Agent.
- (xii) To keep, during the continuance of this Agreement, the said equipment in good repair condition and working order (reasonable wear and tear exempted) and to permit Bet9ja, its servants to have access to the equipment for the purpose of inspecting the condition thereof. The Agent shall pay all license fees, fees and duties payable in respect of the said equipment.
- (xiii) The said equipment shall be insured by Parties against loss or damage by fire, accident, third party risks and riot risks for the full value of the equipment with a reputable insurance Company. Where the agent has not completed his refund to the Company with respect to the



equipment as at the time an event giving rise to an insurance claim arises, the compensation from the insurance company shall be appropriated by both parties in accordance with the balance remaining unpaid by the agent. The agent shall ensure he/she notifies the Company in a timely fashion in the event of loss or damage and other causes giving rise to an insurance claim.

- (xiv) The Agent will be liable to pay all taxes, rates, levies, license fees or any other charges, fines or imposition levied by the Government or local body or other authority in respect of the said equipment and on this transaction.

## **2. OBLIGATIONS OF BET9JA**

- (i) To provide support to the Agent in ensuring the smooth running of the equipment and financing the acquisition of the equipment by crediting the Agent's account with the agreed Company's contribution in the sum of ~~.....~~ **N2,000,000.00** .....with the agent providing the remaining agreed balance. In this agreement, the agreed balance is the sum of ~~.....~~ **N500,000.00** .....which is the agent's contribution.
- (ii) To deduct the higher of either N25,000.00 or 20% of the agent's weekly commission and bonus due to the Agent for the repayment of the Company's contribution for the acquisition of the equipment for each shop until the full repayment of the Company's contribution.
- (iii) To credit the Agent's account with the agreed sum to enable the Agent to withdraw into his/her account for the payment of the equipment and installation.

## **3. OBLIGATIONS OF SUPER AGENT FOR REPAYMENT UPON AGENT'S DEFAULT**

The Agent and the Guarantor (the Agent's Super-Agent – Mr./Ms.....**EGERUE NNAMDI JOSEPH**.....) shall:

1. Execute, by way of collateral security, a promissory note with joint and several liability in favour of Bet9ja for the full payment of the



equipment and, in the event of the Agent making a default in payment of any sum due under this agreement, Bet9ja shall be entitled to recover the default sum from the commission due to the Super-Agent.

2. Offset the total sum incurred in the purchase of the solar panel wherein the participating Agent under his/her network defaults.
3. Be liable to the company to the tune of ~~N~~500,000 being penalty for the default of any participating erring Agent under his/her network.
4. Ensure that the Agent does not move the equipment out of the approved location.

#### 4. TERMINATION

- (i) Failure of the Agent to make repayment of the upfront fund for the acquisition of the equipment shall lead to ability of Bet9ja to recover the equipment.
- (ii) Failure of the Agent to comply with the terms of this agreement shall result in the immediate termination of all accounts belonging to the Agent on Bet9ja network and an outright disengagement from the company.
- (iii) Breach of any obligations as contained in this agreement and failure to comply with any provisions of this agreement, will lead to the termination and recovery of the equipment or its current monetary value.
- (iv) If the agent shall make default in payment of any weekly sum payable hereunder for **two (2) consecutive weeks** after the same shall have become due or shall fail to observe the terms and conditions of this agreement or if he/she becomes bankrupt or a receiver is appointed of his/her property or if distress or execution is levied against his/her property or if he/she ceases to be an agent of Bet9ja, Bet9ja may without prejudice to the company's claim for arrears of weekly payment or damages for breach of this contract, terminate this Agreement without notice and retake possession of the equipment and



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Handwritten signature in blue ink, appearing to be 'Jane', located at the bottom right of the page.

it shall be lawful for Bet9ja, its agents or servants to access any premises where the equipment may be and seize and take possession thereof. And on determination of this Agreement as aforesaid the Agent and/or his Super Agent will remain liable for the arrears of payment or for damages for breach of this agreement and Bet9ja may enforce such claim by action or otherwise.

## **5. MODIFICATION**

- (i) Bet9ja can modify any of the Terms and Conditions contained in this Agreement at any time and at its sole discretion.
- (ii) If any modification is unacceptable to the Agent, his/her sole recourse is to refund the total cost of the equipment.

## **6. LIMITATION OF LIABILITY**

- (i) Bet9ja shall not be liable for any indirect, special, or consequential damages, or any loss of revenue, profits or data arising in connection with this Agreement even if Bet9ja has been advised of the possibility of such damages.
- (ii) Bet9ja shall not be liable for suitability or otherwise of the equipment to be purchased even if Bet9ja has been advised so advised.

## **7. DISCLAIMERS**

Bet9ja makes no express or implied warranties or representations with respect to and/or including without limitation warranties of fitness, merchantability, non-infringement, or any implied warranties arising out of the use of the equipment.

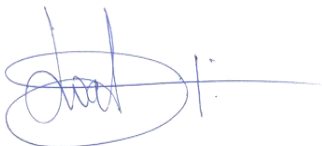
## **8. MISCELLANEOUS**

- (i) This Agreement and any matters relating hereto shall be governed by and construed in accordance with Nigerian Laws.
- (ii) The Agent shall not assign this Agreement, by operation of Law or otherwise, without Bet9ja's prior written consent. Subject to that restriction, this Agreement shall be binding on, inure to the benefit of, and enforceable against the parties and their respective successors and assigns.
- (iii) Bet9ja's failure to enforce the Agent strict performance of any provision of this Agreement shall not constitute a waiver of its right to subsequently enforce such provision or any other provision of this Agreement.



**IN WITNESS WHEREOF THE PARTIES AFOREMENTIONED HAVE EXECUTED THE AGREEMENT AS FOLLOWS**

**Bet9ja** signed as follows:



Sign.....

Status: **SENIOR LEGAL ADVISER**

Name: **ADEWALE AKANDE, ESQ.**

Date: **12<sup>TH</sup> JULY, 2023**

**The Agent signed as follows:**

Name **NWOYE EKENE MOSES** .....

Signature:.....

**In the presence of**

Name **Mrs. Sunny Echeng Summer** .....

Address **Ovonum Bus-stop, Obubra L.G.A, Cross River State** .....

Signature:.....

Date: **27/7/2023** .....

**SUPER AGENT'S COVENANT**

I, **EGERUE NNAMDI JOSEPH** of No 72 Old Refinery Road Elelenwo Port **Harcourt Rivers State Nigeria** with Super Agent's code **LA-AMU-1466sa** hereby covenant to wholly undertake the full repayment of the equipment herein and to pay the sum of N500,000 as penalty in the event of default by the Agent herein.

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**The Super Agent signed as follows:**

Name ..... **EGERUE NNAMDI JOSEPH** .....

Signature:..  .....

**In the presence of**

Name..... **EGERUE NGOZI AGATHA** .....

Address..... **No 72 Old Refinery Road Elelenwo Port Harcourt Rivers State Nigeria** .....

Signature:..  .....

Date:..... **27/7/2023** .....

**EQUIPMENT SCHEDULE**

The Equipment referred to under the recital hereinbefore shall include any or all the following:

1. Battery
2. Inverter
3. Solar Panel
4. Installation Accessories etc.

